Brazoria County District Court

Cause No. 2023-CV-0044

Lindsey Walker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	9-28-23
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant, for its answer to Plaintiff's Original Petition, respectfully shows the Court as follows.

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the credible evidence.

For its first affirmative defense, Defendant asserts proportionate responsibility unedr Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own failure to keep a proper lookout and to yield the right-of-way at the intersection caused or contributed to the collision, and any recovery must be reduced accordingly or barred if Plaintiff's percentage of responsibility exceeds fifty percent.

For its second affirmative defense, Defendant asserts sudden emergency. Immediately before the impact, a vehicle entered the intersection at speed and without warning, leaving Defendant no reasonable time to react, and Defendant acted as an ordinarily prudent driver would under the same circumstances.

For its third affirmative defense, Defendant asserts failure to mitigate damages. Plaintiff failed to use reasonable care to obtain prompt and appropriate medical treatment and to follow recommended care, and any damages that reasonable mitigation would have avoided are not recoverable.

Defendant reserves the right to amend this answer as discovery proceeds.